

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1013
(Reference to printed bill)

Amendment instruction key:
[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 38, chapter 3, article 4, Arizona Revised
3 Statutes, is amended by adding section 38-452, to read:

4 38-452. Public employees; merit-based hiring;
5 applicability; definition

6 A. THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE MAY
7 NOT DO EITHER OF THE FOLLOWING:

8 1. ESTABLISH ANY POLICIES OR PRACTICES THAT REQUIRE A PERSON
9 TO BE HIRED BASED ON ANYTHING OTHER THAN THE MERIT OF THE PERSON.

10 2. MANIPULATE OR INFLUENCE THE COMPOSITION OF EMPLOYEES WITH
11 REFERENCE TO RACE, ETHNICITY, SEX OR NATIONAL ORIGIN EXCEPT TO
12 ENSURE COLOR-BLIND AND RACE-NEUTRAL HIRING IN ACCORDANCE WITH STATE
13 AND FEDERAL ANTIDISCRIMINATION LAWS.

14 B. THE ATTORNEY GENERAL, A COUNTY ATTORNEY OR ANY OTHER
15 PERSON MAY FILE FOR DECLARATORY RELIEF, INJUNCTIVE RELIEF OR DAMAGES
16 FOR ANY VIOLATION OF THIS SECTION. A PARTY THAT PREVAILS IN AN
17 ACTION AGAINST THIS STATE OR A POLITICAL SUBDIVISION OF THIS STATE
18 IS ENTITLED TO COSTS AND REASONABLE ATTORNEY FEES.

19 C. THIS SECTION DOES NOT CONTRADICT ANY STATE LAWS OR FEDERAL
20 EMPLOYMENT LAWS THAT PROHIBIT DISCRIMINATORY PRACTICES.

21 [D. THIS SECTION DOES NOT APPLY TO, LIMIT OR DIMINISH
22 VOLUNTARY VETERANS' PREFERENCE EMPLOYMENT POLICIES PURSUANT TO
23 SECTION 23-495.01 OR ANY OTHER VETERANS' PREFERENCE POLICIES.]

Senate Amendments to S.B. 1013

1 ~~[D.]~~ [E.] FOR THE PURPOSES OF THIS SECTION, "MERIT" MEANS A
2 PERSON'S QUALIFICATIONS, SKILLS, KNOWLEDGE, EXPERIENCE AND
3 DEMONSTRATED ABILITY TO PERFORM THE ESSENTIAL DUTIES OF A JOB, AS
4 DETERMINED THROUGH OBJECTIVE CRITERIA, SUCH AS EDUCATION, TRAINING,
5 WORK HISTORY, JOB PERFORMANCE AND ANY RELEVANT ASSESSMENTS.

6 Enroll and engross to conform

7 Amend title to conform

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